



Decide What Your Oath Was For

Student copy (project or hand out)

1 Mr. President, on the day you took office you signed Executive Order 14160, and you gave it a generous title: Protecting the Meaning and Value of American Citizenship. It directed the federal government to withhold citizenship documents from certain children born on American soil. I write as a citizen with no standing over you, only the small standing the Constitution gives every person it names. You swore that day to preserve, protect, and defend it.

2 Let me grant you the part that is real. A nation may decide who enters and who stays, and many serious people share your worry that the present system is neither orderly nor honest. The order reaches only children born after February 19, 2025, to mothers here unlawfully or briefly on a visa, whose fathers hold no citizenship or residence of their own. You did not invent the anxiety behind it. I will not pretend that wanting a border to mean something is a low motive.

3 Yet the order does not answer that worry. It answers a constitutional question instead, and answers it against the document you swore to defend. The Fourteenth Amendment, ratified in 1868, says that all persons born in the United States and subject to the jurisdiction thereof are citizens. In 1898, in *United States v. Wong Kim Ark*, the Court held that a child born here to foreign parents is a citizen, excepting only the children of diplomats and of an invading army. Your lawyers now ask the Court to find in subject to the jurisdiction a requirement of lawful domicile that no one who wrote the Amendment thought to mention. Chief Justice Roberts called the position quirky.

4 You will say the meaning is contested, and in a courtroom it is. But every lower court that has ruled has found the order to violate the Citizenship Clause, and a statute Congress passed, codified at 8 U.S.C. 1401, repeats the Amendment's words almost exactly. An oath to defend a text is not kept by reading the text as you wish it read.

5 A decision is expected before the Court rises at the end of June. You will not write it; nine other people will. What is still yours is smaller and harder. You can spend the office on a reading your own appointees could barely say in open court without flinching, or you can let the words mean what they have meant since 1868. The children covered by the order were born here. Decide what your oath was for.

AP-style multiple choice:

1. The relationship between the second paragraph and the third paragraph is best described as one in which the writer first
 - A) concedes the worry behind the order and then recasts the order as a constitutional question that worry does not reach
 - B) raises a practical objection to the order and then withdraws it once the legal history is laid out
 - C) voices his own grievance against the President and then broadens it into a national complaint
 - D) states the order's legal basis and then supplies the evidence that confirms that basis
2. In context, the final two sentences of the last paragraph ("The children covered by the order were born here. Decide what your oath was for.") most directly serve to
 - A) introduce new legal evidence that the body of the letter had withheld for emphasis
 - B) hand the President a concrete obligation framed as his own choice rather than as a demand
 - C) predict how the Supreme Court is likely to rule before the end of June
 - D) soften the letter's argument by conceding that the dispute is ultimately a matter of personal conscience

Discussion questions:

1. The letter spends an entire paragraph agreeing that the President's worry about the border is real before arguing that the order is unconstitutional. How does granting that ground first change the force of the constitutional argument that follows?
2. The writer never says the President is wrong outright; instead he quotes the oath and the Chief Justice back at him. Why might holding someone to his own words and his own appointees be more persuasive than direct accusation, and what does the writer risk by staying so deferential?

Writing prompt (Homework or extended in-class, Q3 argument):

The writer argues that an oath to defend a text is not kept by reading the text as one wishes it read. Write an essay in which you defend, challenge, or qualify the claim that public officials are bound by the established meaning of the laws and oaths they swear to, even when they sincerely believe a different reading would serve the country better. Use appropriate evidence from your reading, observation, or experience to support your line of reasoning.